

Ramesh Bhatia vs State Of Nct Of Delhi & Anr on 11 May, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 2162/2022
RAMESH BHATIA

Through:

.....
Mr Pratap Sahani, Adv.

versus

STATE OF NCT OF DELHI & ANR.

..... Respondent

Through: Mr Ashok Kumar Garg, APP for Sta

CORAM:

HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 11.05.2022 Exemption allowed, subject to all just exceptions. The application stands disposed of.

CRL.M.C. 2162/2022 & CRL.M.A. 9136/2022 This is a petition seeking quashing of proceedings in CT. CASES No. 320/2017, titled as 'Sanjeev Kumar Singh v. Ramesh Bhatia' pending in the Court of MM-02, Shahdara, Karkardooma Courts, Delhi.

It is submitted by Mr Sahani, learned counsel appearing for the petitioner that the respondent No.2 had filed the criminal complaint under Section 138 N.I. Act against the petitioner for dishonor of cheque No. 439224 amounting to Rs. 5.5 lakhs. During the pendency of the complaint at Patiala House Court, the petitioner and respondent No.2 entered into an MoU dated 02.07.2015 wherein the petitioner agreed to pay an amount of Rs. 5,50,000/- to the respondent No.2 by 25 equal monthly installments of Rs. 20,000/- each and also paid a sum of Rs. 35,000/- by Demand Draft and also Rs.15,000/-. Out of these 25 Post Dated Cheques of Rs. 20,000/- each, some of the cheques have bounced and respondent No.2 has also initiated three more criminal complaints. It is submitted by Mr Sahani that since the first complaint is pending, the other three complaints amount to parallel proceedings as the debt in question is only one.

Issue notice. Mr Garg, learned APP accepts notice on behalf of the State. He may make his legal submissions at the time of arguments.

Issue notice to respondent No.2 through all modes including electronically, returnable on 28.07.2022.

JASMEET SINGH, J MAY 11, 2022 sr Click here to check corrigendum, if any